person as the principal link for their operation? On whose behest was he acting? Is there some credibility to Afzal's statement . . . that both the leader of the attack, Mohammad, and that one of the masterminds in Kashmir, Tariq, actually belonged to the Special Task Force? What is the significance of the press report that 4 terrorists including one Hamza—the same name as one of the terrorists killed in the Parliament attack and supposedly identified by Afzal—had been arrested by the Thane police in November 2000 and handed over to the J&K police for further investigation? . . . It will be a travesty of justice to hang Mohammad Afzal without ascertaining answers to these questions.

(3) With the acquittal of three out of four persons from the charge of conspiracy, it is clear that the investigating agency tried to frame at least three innocent persons. The high court had found the agency guilty of producing false arrest memos, doctoring telephone conversations, and illegal confinement of people to force them to sign blank papers. It is also clear that false confessions were extracted by torture.

In the absence of alternative explanations, it seems that the NDA government was massively fooled by its own police. The country must learn the truth behind the attacks. Responsibility must be fixed for those guilty of negligence, concoction of evidence and propagation of deliberate falsehood. Above all, those who almost took the country to war in such a reckless manner must be made accountable. To that end, the committee has already issued an appeal for Parliamentary inquiry . . . There have been other recent appeals for a public inquiry on the case . . . We urge you to institute a Parliamentary inquiry at least on the following questions:

(1) Who attacked Parliament and what was the conspiracy?

(2) On what basis did the NDA government take the country close to a nuclear war?

(3) What was the role of the Special Task Force (J&K) on surrendered militants?

(4) What was the role of the Special Cell of Delhi Police in conducting the case?

(5) What institutional and legal changes are required to prevent a government from going to war unilaterally without the consent of Parliament as in this case?

The political system has failed to take any steps to answer such serious questions. And time is running out for initiating any fruitful inquiry on these questions. From what we can see through the restricted legal window of the Supreme Court, just six persons are in view, five attackers and Mohammad Afzal. Since the attackers died on the spot, Mohammad Afzal is the only living soul who, according to the Supreme Court itself, might know something of what really happened. And as Nandita Haksar has observed (*Indian Express*, 30 September 2006), 'We have not even had a chance to hear Afzal's story. Hanging Mohammad Afzal will only be a blot on our democracy.'[18]

This essay first appeared, in a slightly different form, in *The Economic and Political Weekly*, 7 October 2006.